

January 4, 2007



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14459
(FIRST REVISION)

EXPIRATION DATE: June 30, 2007

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: The Library of Congress
Motion Picture Conservation Center Vaults
Wright-Patterson Air Force Base, OH
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the one-time transportation in commerce of certain nitrate cellulose film packaged in metal cans and shrink-wrapped on pallets. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.183 in that a non-DOT specification package is authorized; and 172.302(c) in that marking the special permit number on the package is waived.
5. BASIS: This emergency special permit is based on the applications of the Library of Congress dated January 3, 2007 and January 4, 2007 submitted in accordance with § 107.117 and a determination that it is necessary to protect life and the environment.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Films, nitrocellulose base	4.1	UN1324	III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Each film reel must be individually placed in a metal can. There are approximately 10,000 reels of 35 mm nitrate film. The cans are placed on pallets and shrink-wrapped. There are approximately 70 pallets of films with an estimated net weight of 50,000 lbs.

b. OPERATIONAL CONTROLS -

(i) The one-time, one-way shipment is to be made from Taylor, PA to the Library of Congress nitrate film vaults on Wright-Patterson AFB, OH.

(ii) The shipment will be by contract carrier (Office Movers, Inc.) and the movement of the material will be made during off-peak traffic hours.

8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident

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involving a package, shipment or operation conducted under
terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "Deborah F. Bilby".

for Bob Richard
Deputy Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Pipeline and Hazardous Material Safety
Administration, Department of Transportation, Washington, D.C.
20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at
http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm.
Photo reproductions and legible reductions of this special permit
are permitted. Any alteration of this special permit is
prohibited.

PO: MAZZULLO